from Lord Coke, who refers to a corporation as "invisible, immortal, and resting only in intendment and consideration of the law," [10] or from Mr. Justice Blackstone, who throughout his work refers to corporations as "artificial persons" or "artificial personalities." [11] Another embodiment of the fiction theory is found in the language of the late Judge Vann of the Court of Appeals of New York, who said: "A corporation, however, is a mere conception of the legislative mind. It exists only on paper through the command of the legislature that its mental conception shall be clothed with power." [12]

A learned law professor in this country has said that while the corporation is a fiction, in so far as the law treats it as a "person" it is "not a fiction in the sense of a supposition contrary to and having no relation to fact." [13] Or, expressed perhaps more simply, he may mean that it is a fiction which is not a fiction,—a thought my mind finds it difficult to follow.

A New York judge has recently suggested that a corporation is neither a reality, a personality, nor a

[10] Case of Sutton's Hospital, 10 Co. Rep. 1, 32.

[11] 1 Bl. Comm. 467–8.

[12] *People* v. *Knapp*, 206 N. Y. 373, 381.

[13] The Scope and Limits of the Corporate Entity Theory, 17 Columbia Law Review, 128, 129.

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